

OFFICE OF THE SECRETARY

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December 5, 2019

The Honorable Jack V. Sapunor
Judge of the Superior Court
County of Sacramento
720 Ninth Street
Sacramento, CA 95814

Re: Robert Castaneda
CDCR No: P74895
Case No: 00F06896
Date of Sentence: April 20, 2001

Dear Honorable Jack V. Sapunor:

The purpose of this letter is to provide the court with the authority to resentence inmate Robert Castaneda, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

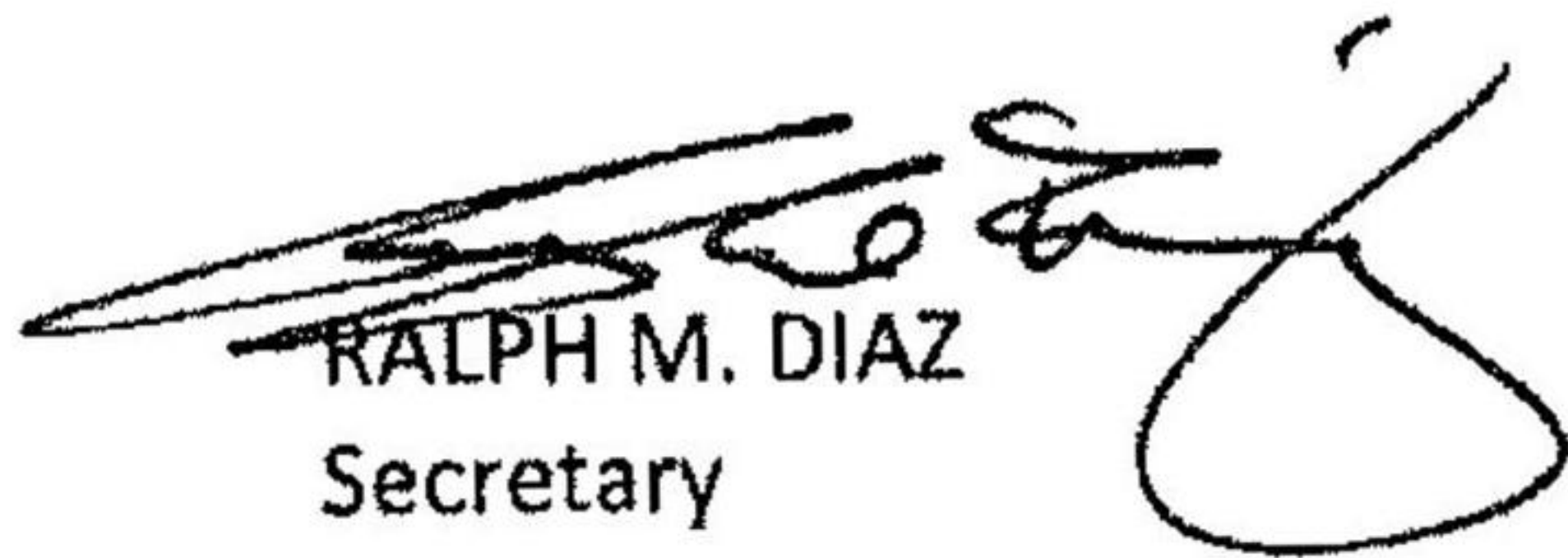
As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Castaneda is commended for remaining disciplinary free since being received to CDCR on May 3, 2001. Inmate Castaneda is currently assigned to California Prison Industry Authority Optical/Substance Abuse Program. Inmate Castaneda is commended by staff for being a model inmate and having a great work ethic. Castaneda also participates in Criminals and Gang Members Anonymous, Gang Affiliates Transitioning to Excellence, peer facilitated yoga classes, Victim Awareness Program, Alcohol Anonymous, and Anger Management Self-Help Programs. Inmate Castaneda received his Certificate of High School Equivalency during his incarceration.

The Honorable Jack V. Sapunor
Page 2

Having reviewed the enclosed documentation it appears that inmate Castaneda's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:
Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Honorable Peter C. Deddeh, Presiding Judge
Sacramento County District Attorney's Office
Sacramento County Public Defender's Office